

HEALTH AND SAFETY CODE

TITLE 2. HEALTH

SUBTITLE G. LICENSES AND OTHER REGULATION

CHAPTER 144. RENDERERS

SUBCHAPTER A. GENERAL PROVISIONS

Sec. 144.002. DEFINITIONS. In this chapter:

(1) "Dead animal" means the whole or substantially whole carcass of a dead or fallen domestic animal, or domesticated wild animal, that was not slaughtered for human consumption.

(2) "Dead animal hauler" means a person who collects and disposes of dead animals for commercial purposes.

(3) "Disposal" means the burying, burning, cooking, processing, or rendering of dead animals or of renderable raw materials.

(4) "Employee" means a person who:

(A) is a legal employee of a rendering establishment; and

(B) handles or operates rendering equipment, utensils, containers, vehicles, or packaging materials owned or leased by the rendering establishment.

(5) "Nuisance" means any situation or condition that constitutes a nuisance under Section 341.011.

(6) "Person" means an individual, firm, partnership, association, corporation, trust, company, or organization, and includes an agent, officer, or employee of that individual or entity.

(7) "Processing" means an operation or combination of

operations through which materials derived from a dead animal or renderable raw material sources are:

(A) prepared for disposal at a rendering establishment;

(B) stored; or

(C) treated for commercial use or disposition, other than as food for human consumption.

(8) "Related station" means an operation or facility that is necessary or incidental to the operation of a rendering establishment and that is operated or maintained separately from the rendering establishment.

(9) "Rendering business" means the collection, transportation, disposal, or storage of dead animals or renderable raw materials for commercial purposes at locations where dead animals or renderable raw materials are rendered, boiled, processed, stored, transferred, or otherwise prepared, either as a separate business or in connection with any other established business.

(10) "Rendering establishment" means an establishment or part of an establishment, a plant, or any other premises at which dead animals or renderable raw materials are rendered, boiled, processed, or otherwise prepared to obtain a product for commercial use or disposition, other than as food for human consumption. The term includes all other operations and facilities that are necessary or incidental to the establishment.

(11) "Renderable raw material" means any unprocessed or partially processed material of animal or plant origin, other than a dead animal, that is processed by rendering establishments. The term includes:

(A) animals, poultry, or fish slaughtered or processed for human consumption but that are unsuitable for that use;

(B) the inedible products and by-products of animals, poultry, or fish slaughtered or processed for human consumption;

(C) parts from dead animals;

(D) whole or partial carcasses of dead poultry or fish;

(E) waste cooking greases; and

(F) recyclable cooking oil.

(12) "Recyclable cooking oil" means any unprocessed or partially processed grease, fat, or oil previously used in the cooking or preparation of food for human consumption and intended for recycling by being used or reused as:

(A) an ingredient in a process to make a product; or

(B) an effective substitute for a commercial product.

(13) "Renderable raw material hauler" means a person who collects or transports renderable raw materials for commercial purposes.

(14) "Transfer station" means a facility at which renderable raw materials are transferred from one conveyance to another.

(15) "Waste cooking grease" means any unprocessed or partially processed grease, fat, or oil previously used in the cooking or preparation of food for human consumption and no longer suitable for such use.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Amended by Acts 1999, 76th Leg., ch. 485, Sec. 1, eff. Sept. 1, 1999.

Sec. 144.003. CONSTRUCTION OF OTHER LAWS. (a) This chapter does not affect:

(1) Chapter 141, Agriculture Code; or
(2) any state law or a rule of any public regulatory body that relates to the control of water or air pollution.

(b) This chapter does not affect a municipality's power to regulate by ordinance rendering businesses within the boundaries of the municipality. However, each rendering establishment, related station, transfer station, dead animal hauler, or renderable raw material hauler subject to a municipal ordinance shall comply with this chapter.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Amended by Acts 1999, 76th Leg., ch. 485, Sec. 2, eff. Sept. 1, 1999.

SUBCHAPTER C. OPERATING PROCEDURES

Sec. 144.021. GENERAL REQUIREMENTS FOR RENDERING OPERATIONS. Each rendering establishment, related station, transfer station, dead animal hauler, or renderable raw material hauler shall adopt operating procedures that:

(1) provide for the sanitary performance of rendering operations and processes;

(2) prevent the spread of infectious or noxious materials; and

(3) ensure that finished products are free from disease-producing organisms.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.
Amended by Acts 1999, 76th Leg., ch. 485, Sec. 6, eff. Sept. 1,
1999.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. 219), Sec. 3.0416,
eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 3.005,
eff. September 1, 2015.

Sec. 144.022. RECORDS. (a) Each rendering establishment,
related station, or dead animal hauler shall have a dead animal
log that meets the requirements prescribed by department rule.
The name of the rendering establishment, related station, or
dead animal hauler must be on the front of the log.

(b) A rendering establishment, related station, or dead
animal hauler that receives a dead animal shall enter the
following information in the log:

(1) the date and time of the pickup of the dead
animal;

(2) the name of the driver of the collection vehicle;

(3) a description of the dead animal;

(4) the location of the dead animal, including the
county; and

(5) the owner of the dead animal, if known.

(c) The rendering establishment, related station, or dead
animal hauler shall also keep a record in the log, or in an
appendix to the log, of the general route followed in making the
collection.

(d) The log is subject to inspection at all reasonable
times by the department or a person with written authorization

from the department.

(e) This section does not apply to a renderable raw material hauler.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. 219), Sec. 3.0417, eff. April 2, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 3.006, eff. September 1, 2015.

Sec. 144.023. VEHICLES. (a) A vehicle used to transport dead animals or renderable raw materials to or from a rendering establishment must:

(1) be leak-proof and maintained in a manner that precludes the creation of a nuisance; and

(2) comply with each applicable requirement for operation on the public roads or highways, including applicable insurance requirements and gross vehicle weight limitations.

(b) A collection vehicle shall be held to a minimum number of stops, and the stops shall be brief, while traveling to the establishment with dead animals or renderable raw materials. Each collection vehicle shall be washed and sanitized at the end of each day's operations.

(c) A truck bed used to transport dead animals or renderable raw materials shall be thoroughly washed and sanitized before use for the transport of finished rendered products. A truck bed used to transport dead animals or renderable raw materials to a rendering establishment, or to transfer finished rendered products from an establishment, shall, before being used to transport any product intended for

human consumption, be thoroughly sanitized with a bactericidal agent that is safe for use in a rendering establishment. A truck bed may not be used to transport dead animals or renderable raw materials at the same time the truck bed or any part of the truck bed is used to transport any product intended for human consumption, notwithstanding the manner in which part of the truck bed is sealed or separated from the remainder of the bed.

(d) Repealed by Acts 2015, 84th Leg., R.S., Ch. 838 , Sec. 3.030(3), eff. September 1, 2015.

(e) Repealed by Acts 2015, 84th Leg., R.S., Ch. 838 , Sec. 3.030(3), eff. September 1, 2015.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.
Amended by Acts 1999, 76th Leg., ch. 485, Sec. 7, eff. Sept. 1, 1999.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 3.007, eff. September 1, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 3.008, eff. September 1, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 3.030(3), eff. September 1, 2015.

Sec. 144.024. TREATMENT OF DEAD ANIMALS OR RENDERABLE RAW MATERIALS. (a) Dead animals or renderable raw materials received by a rendering establishment shall either be immediately placed in the rendering process or stored for not more than 48 hours in a manner that precludes the creation of a nuisance or a malodorous condition.

(b) Cooking or other dehydration operations shall be

conducted in a manner that prevents the survival of disease-producing organisms in the processed material. Adequate and suitable means for the treatment of cooking vapors shall be provided and operated in a manner that controls odors.

(c) All cooked or finished materials shall be kept apart from areas where dead animals or renderable raw materials are kept in a manner that prevents contamination.

(d) If a person intends to use oil or grease as an ingredient in livestock feed or in topical cosmetic products, the person may not contaminate or commingle waste cooking greases or recyclable cooking oils with grease trap waste, grit trap waste, or any other substance that would render the greases or oils harmful or otherwise unsuitable for use as an ingredient in livestock feed or in topical cosmetic products.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Amended by Acts 1999, 76th Leg., ch. 485, Sec. 8, eff. Sept. 1, 1999.

Sec. 144.025. FLOORS. (a) During operations, the floors in processing areas shall be kept reasonably free from processing wastes, including:

- (1) blood;
- (2) manure;
- (3) scraps;
- (4) grease;
- (5) water;
- (6) dirt; and
- (7) litter.

(b) The floors shall be thoroughly cleaned at the end of each day's operations.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Sec. 144.026. WASTE TREATMENT. (a) Waste shall be handled and disposed of in a manner that prevents contamination of:

- (1) the water supply;
- (2) processing equipment;
- (3) packaging materials; and
- (4) finished products.

(b) Liquid waste shall be treated in the manner required by the department and disposed of in a manner approved by department rule.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 1 (S.B. 219), Sec. 3.0418, eff. April 2, 2015.

Sec. 144.027. EMPLOYEE FACILITIES. (a) Adequate and convenient toilet facilities for employees shall be located in an establishment.

(b) An adequate number of lavatory facilities for employees to wash their hands shall be provided at convenient locations in the establishment and must be supplied with warm water under pressure and with soap or another detergent.

(c) A drinking water supply shall be provided at convenient locations in the establishment for the use of employees.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 3.009,

eff. September 1, 2015.

Sec. 144.028. HYGIENE REQUIREMENTS. A person engaging in rendering processes or operations shall wear washable garments and accessories and conform to hygienic practices.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Sec. 144.029. SANITARY CONDITIONS REQUIRED. (a) The premises of a rendering establishment shall be kept clean and neat, in good repair, and reasonably free from:

(1) undue collection of refuse;

(2) waste materials;

(3) rodent infestation;

(4) insect breeding places;

(5) standing water; and

(6) other objectionable conditions.

(b) Equipment and utensils shall be provided as necessary for the rendering establishment to conduct operations in a sanitary manner.

(c) Rodents, roaches, and other vermin shall be controlled.

(d) Hide storage facilities shall be in closed areas separate from all other areas.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Sec. 144.030. COLLECTION CONTAINER REQUIREMENTS. (a) A container in which dead animals or renderable raw materials are accumulated by a producer at collecting points for pickup by a dead animal hauler or renderable raw material hauler must remain on the premises at each collecting point.

(b) The owner of the containers shall maintain the containers in a leak-proof and sanitary condition and shall replace them as necessary.

(c) The transportation, delivery, transfer, loading, and off-loading of dead animals and renderable raw materials shall be performed in a manner that prevents the release of animal parts and spills or leaks of renderable raw materials from containers. A release of dead animal parts or spill or leak of renderable raw materials shall immediately be cleaned up and reported in the log required by Section 144.022.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Amended by Acts 1999, 76th Leg., ch. 485, Sec. 9, eff. Sept. 1, 1999.

SUBCHAPTER G. ADMINISTRATIVE AND ENFORCEMENT PROVISIONS;

PENALTIES

Sec. 144.078. INJUNCTION. (a) The attorney general may bring an action in any district court of this state that has jurisdiction and venue for an injunction to compel compliance with this chapter or to restrain any actual or threatened violation of this chapter.

(b) The court may enter an order or judgment to award a preliminary or final injunction as it considers appropriate.

(c) Repealed by Acts 2015, 84th Leg., R.S., Ch. 838 , Sec. 3.030(15), eff. September 1, 2015.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Amended by Acts 1999, 76th Leg., ch. 485, Sec. 21, eff. Sept. 1, 1999.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 3.010, eff. September 1, 2015.

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 3.030(15), eff. September 1, 2015.

Sec. 144.079. PROHIBITED ACTS. (a) A person may not receive, hold, slaughter, butcher, or otherwise process any animal as food for human consumption in a building or compartmented area of a building used as a rendering establishment or related station.

(b) A person may not steal, misappropriate, contaminate, or damage recyclable cooking oil or containers of recyclable cooking oil.

(c) A renderer, hauler, or any other person may not knowingly take possession of stolen recyclable cooking oil.

Acts 1989, 71st Leg., ch. 678, Sec. 1, eff. Sept. 1, 1989.

Amended by Acts 1999, 76th Leg., ch. 485, Sec. 22, eff. Sept. 1, 1999.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 838 (S.B. 202), Sec. 3.011, eff. September 1, 2015.
**ON BEHALF OF THE REPUBLIC OF
AZERBAIJAN**

DECISION

OF THE PLENUM OF CONSTITUTIONAL COURT

OF THE REPUBLIC OF AZERBAIJAN

Concerning article 1179.2 of the Civil Code of the Republic of Azerbaijan and articles 15 and 18.1 of the Law of the Republic of Azerbaijan "On Notary"

29 June, 2007

Baku city

Plenum of Constitutional Court of the Republic of Azerbaijan composed of F. Abdullayev, (Chairman), S. Salmanova, F. Babayev, S. Hasanova, B. Garibov,

~~R.Gvaladze (Reporter Judge), I.Najafov and A.Sultanov, with participation of the Secretary I.Ismayilov, legal representatives of the interested parties: T.Heydarov, representative of the Surakhani district court of Baku city and S.Mammadov, deputy head of the department of administrative and military legislation of Milli Majlis;~~

~~in connection with the request of Surakhani district court of Baku city, according to article 130.6 of the Constitution has examined in open judicial session via procedure of special constitutional proceedings the constitutional case on interpretation of article 1179.2 of the Civil Code of the Republic of Azerbaijan and articles 15 and 18.1 of the Law of the Republic of Azerbaijan "On Notary".~~

~~Having heard the report of Judge R.Gvaladze, reports of legal representatives of interested parties T.Heydarov and S.Mammadov, and having considered materials of the case, Plenum of Constitutional Court~~

~~DETERMINED AS FOLLOWS:~~

~~Citizen M.Askerova, basing on article 1179.2 of the Civil Code of the Republic of Azerbaijan, applied to Yeni-Surakhani district municipality for certifying of her testament. In response Yeni-Surakhani district municipality informed that certifying of testament is a competence of state notary's office and not of municipality. Because of the refuse of Yeni-Surakhani district municipality to certify the testament, M.Askerova via procedure indicated in civil procedure legislation lodged a complaint to Surakhani district court for resolution and action of officials of local self-government bodies. On the base of civil-procedure legislation M.Askerova applied to Surakhani district court on decisions and actions of officials of local municipality bodies because of refusal of Yeni-Surakhani district municipality to certify her testament. During the court examination, M.Askerova has appraised the mentioned as the contradiction to human rights and freedoms and asked for application to the Constitutional Court for the interpretation of articles 15 and 18.1 of the Law of the Republic of Azerbaijan "On Notary".~~

~~Surakhani district court submitted the request to the Constitutional Court and asked for interpretation of article 15 and 18.1 of the Law "On Notary".~~

~~The reference has been proved by that though article 1179.2 of Civil Code provides for certifying of testament by institutions of local government in places of absence of notary, nevertheless, article 1181 of the~~

~~given Code indicating persons equal to notary, article 15 of the Law "On Notary" indicating the subjects which execute notarial functions in official bodies, article 18 indicating notarial functions executed by officials of corresponding authorities and article 18.1 indicating persons equal to notary, do not provide for realization by institutions of local government of the given notarial function.~~

~~Within the request it is also indicated that specified articles of the Law "On Notary" empower relevant executive authorities with the mentioned functions. In practice of application of law such situations lead to disputes and misunderstandings.~~

~~In connection with the request, Plenum of Constitutional Court notes the following.~~

~~According to article 142.1 of the Constitution of the Republic of Azerbaijan (hereinafter, Constitution) local self-government shall be carried out by municipalities. Organization of their work, their powers and guarantees of independence precisely specified within the Constitution.~~

~~Alongside with the powers listed in the Constitution to the municipalities may be given additional authorities of legislative and executive power (144.2 of the Constitution).~~

~~According to mentioned position of the Constitution in article 1 of the Law of the Republic of Azerbaijan "On status of municipalities" it is specified that local self-government in Azerbaijan Republic is such system of the organization of activity of citizens which allows them to carry out the right of the independent and free decision of questions of local value within the limits of the law and to carry out according to a article 144.2 of the Constitution of the Republic of Azerbaijan part of the state work in the name of interests of local population.~~

~~Transfer of some concrete powers to institutions of local government by legislative and executive authorities is not also excluded in the international documents.~~

~~For example, in article 4.1 of the European Charter of local self-government of October 15th 1985 it is indicated that the basic powers and responsibilities of local authorities are prescribed by the constitution or by statute. However the given position does not exclude transfer to institutions of local government according to the law of separate concrete powers. According to item 2 of given article, local authorities within the limits of the law have full discretion to exercise their initiative with regard to any matter which is not excluded from their competence nor assigned to any~~

~~other authority. According to article 4.3 of the Charter the public responsibilities shall generally be exercised, in preference, by those authorities, which are closest to the citizen. Allocation of responsibility to another authority weigh up the extent and nature of the task and requirements of efficiency and economy.~~

~~According to the Constitution one of the powers transferred by the state to municipalities is stipulated by article 1179 of the Civil Code.~~

~~In the article 1179.1 of the Code it is specified that the testament must be made in written form. Written testament is allowed in notarial form as well as without it. According to article 1179.2 of the Civil Code the notarial form requires that the testament is made and signed by the testator and certified by the notary, and in case of absence of notary - by the institutions of local government.~~

~~As evident from the above-mentioned article, even though the legislator attributes certification of testament to the notary, nevertheless, as exception, in places of absence of the notary it allows to institutions of local government to execute such functions.~~

~~It is necessary to note, that the legislation provides for realization of notarial activity not only by institutions of local government, but also by other subjects.~~

~~Thus, in conformity with the article 15 of the Law "On Notary" a notarial activity through the state in the order established by the given law shall be executed by state notaries working in the state notary's offices, in settlements where there are no notary's offices - by corresponding executive authorities, persons equal according to the Civil Code of the Republic of Azerbaijan to the notaries and competent officials of consulates of the Republic of Azerbaijan.~~

~~Besides in article 18 of the Law it is specified that testaments shall be certified by the relevant executive authorities in settlements, where there are no notaries. According to paragraph 5 of item 3 of the Decree of the President of the Republic of Azerbaijan of January 18th 2000 "On application of the Law of the Republic of Azerbaijan On Notary" competences of "relevant executive authorities" provided for by article 15 and article 18.1 of the present Law shall be executed by representatives of executive authorities of regions, cities and city regions.~~

~~In conformity with article 18.1 of the above-mentioned Law the persons indicated in article 362 of~~

~~the Civil Code of the Republic of Azerbaijan shall certify power-of-attorney and the persons indicated in article 1181 - shall certify testaments.~~

~~Apparently, the above-stated norms of the Law "On Notary" regulate bases of notarial activity only in state institutions. The given norms, including articles 15 and 18.1 do not provide for the order of certifying of testaments by municipalities that does not exclude powers of institutions of local government to certify testaments in places of absence of the notary, provided for by article 1179.2 of the Civil Code.~~

~~At the same time, as it was already indicated, Law "On Notary" provides for the list of subjects which execute notarial functions in state institutions and also in what cases and conditions they can execute notarial functions. Unlike it the legislation does not provide for the mechanism of realization by institutions of local government of competences on certifying of testaments in places of absence of the notary, stipulated by article 1179.2 of the Civil Code.~~

~~Besides according to article 18 of the Law "On Notary" in settlements where there are no notary's offices testaments shall be certified by competent persons of the relevant executive authority. According to article 1179.2 of the Civil Code in places of absence of the notary, the certifying of the given documents is assigned to institutions of local government. Such uncertainty leads to certain problems with certifying of testaments in places of absence of the notary.~~

~~According to items 1 and 12 of para I of article 94 of the Constitution, general rules concerning using the rights and freedoms of a person and citizen specified in the Constitution, state guarantees of these rights and liberties, transactions, civil and legal agreements, representation and inheritance are established by the Milli Majlis of the Republic of Azerbaijan.~~

~~Being guided by Article 130.6 of the Constitution of the Republic of Azerbaijan and Articles 60, 62, 63, 65, 66, 67 and 69 of the Law of the Republic of Azerbaijan "On Constitutional Court", the Plenum of Constitutional Court:~~

DECIDED:

~~1. In spite of the fact that articles 15 and 18.1 do not provide for the order of certifying of testaments by municipalities, it does not exclude powers of institutions of local government to certify testaments in places of absence of the notary, provided for by~~

~~article 1179.2 of the Civil Code of the Republic of Azerbaijan.~~

~~2. According to items 1 and 12 of para I of article 94 of the Constitution of the Republic of Azerbaijan, to recommend to Milli Majlis of the Republic of Azerbaijan to set the rules of execution by institutions of local government of powers concerning certification of testament in places of absence of the notary, stipulated by article 1179.2 of the Civil Code of the Republic of Azerbaijan.~~

~~3. The decision comes into force from the date of its publication.~~

~~4. The decision is subject to publication in "Azerbaijan", "Respublika", "Khalq gazetisi", "Bakinski rabochiy" newspapers and "Bulletin of Constitutional Court of the Republic of Azerbaijan".~~

~~5. The decision is final and cannot be cancelled, changed or interpreted by any body or official.~~